

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Franklin P. Jones
Judge of the Superior Court
County of Fresno
1100 Van Ness Avenue
Fresno, CA 937-0002

Re: Saenz Jr., Charles Joe
CDC No.: V18152
Case No.: F03902925-7
Date of Sentence: 12/10/2003

Dear Honorable Franklin P. Jones:

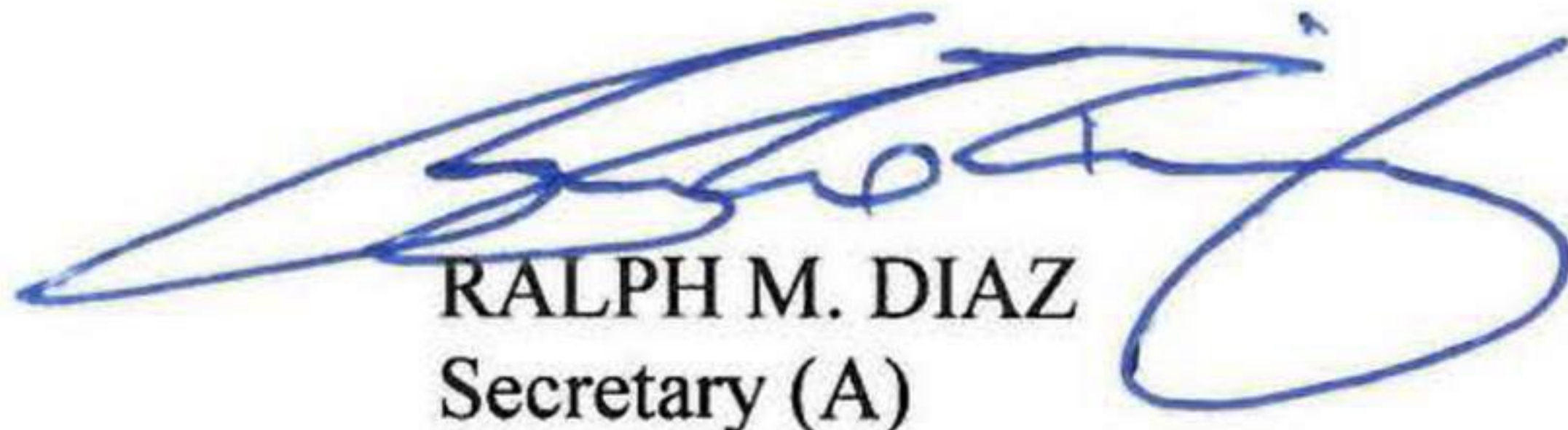
The purpose of this letter is to provide the court with authority to resentence Charles Joe Saenz Jr. pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Saenz Jr. was sentenced in 2003, and was convicted of section 245, subdivision (B), ASSAULT WITH FIREARM. The trial court sentenced inmate Saenz Jr. on 12/10/2003. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Saenz Jr.'s section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Saenz Jr.'s sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, written in a cursive style.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Alan M. Simpson, Fresno County Presiding Judge
Fresno District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

[Not to be used for multiple count convictions or for 1/3 consecutive sentences.]

WASCO V10 0312511 V18152 ✓

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF FRESNO	☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT 10100		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SAENZ, CHARLES JOE. JR.	DOB: 4/8/83	CASE NUMBER F03902925-7	FILED DEC 11 2003 FRESNO COUNTY COURTS By DEPT 52
AKA:			
CII#:			
BOOKING #:	☐ NOT PRESENT		
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT	
DATE OF HEARING December 10, 2003	DEPT. NO. 52	JUDGE FRANKLIN P. JONES	
CLERK L. CLAY	REPORTER S. DINUZZO	PROBATION NO. OR PROBATION OFFICER O. DOUGHERTY/308625	
COUNSEL FOR PEOPLE ALVIN HARRELL		COUNSEL FOR DEFENDANT R. SHROUT	☐ APPTD.

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L.M.U)	TIME IMPOSED
2	PC	245(B)	ASSAULT WITH FIREARM	2003	11/7/03	☐ JURY ☐ COURT ☒ PLEA	M	YRS. 6 MOS. 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
2	12022.5	4	12022.7	3	186.22(B)(1)	10			17 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTION OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

- RESTITUTION FINE of: **\$4600.00** per PC 1202.4(b) forthwith per PC 2085.5.
 - RESTITUTION FINE of: **\$4600.00** per PC 1202.45 suspended unless parole is revoked.
 - RESTITUTION of: \$_____ per PC 1202.4(f) to ☐ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 7, below.)
(1) ☐ Amount to be determined. (2) ☐ Interest rate of: ____% (not to exceed 10% per PC 1202.4(f)(3)(F)).
 - ☐ LAB FEE of: \$_____ for counts: _____ per H&SC 11372.5(a).
 - ☐ DRUG PROGRAM FEE of \$150 per H&SC 11372.7(a). f. ☐ FINE of \$_____ per PC 1202.5.
6. TESTING: ☐ AIDS ☐ DNA pursuant to ☐ PC 1202.1 ☐ PC 290.2 ☐ other (specify):
7. Other orders (specify): **SPECIAL SET HEARING HELD AS TO THE AMOUNT OF RESTITUTION TO THE VICTIM. COURT ORDERS RESTITUTION PAID TO**
8. **THE VICTIM FOR MEDICAL EXPENSES \$5390.00, FOR LOST WAGES \$877.50, TOTAL AMOUNT OF RESTITUTION TO THE VICTIM \$6267.50. ANY FURTHER**
9. **RESTITUTION IS RESERVED BY THE COURT.**

8. TOTAL TIME IMPOSED: **23 0**

9. ☐ This sentence is to run concurrent with (specify): **12-10-2003**

10. Execution of sentence imposed

- ☒ at initial sentencing hearing.
- ☐ at resentencing per decision on appeal.
- ☐ after revocation of probation.
- ☐ at resentencing per recall of commitment. (PC 1170(d).)
- ☐ other (specify):

11. DATE SENTENCE PRONOUNCED **12/10/03** CREDIT FOR TIME SPENT IN CUSTODY **256** INCLUDING: ACTUAL LOCAL TIME **223** LOCAL CONDUCT CREDITS **33** ☐ 4019 ☐ 2933.1 SERVED TIME IN STATE INSTITUTION ☐ DMH ☐ CDC ☐ CRC

12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays. To be delivered to ☐ the reception center designated by the director of the California Department of Corrections. ☒ other (specify): **WASCO STATE PRISON**

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE **PREPARED BY K. DRESSEL-FERRIS** DATE **December 11, 2003**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.